

Flax Mill Caravan Park – Statutory and Planning References

A reference compilation of the provisions that apply specifically to the licensing, operation, stay duration and zoning of the Flax Mill Caravan Park, Lot 336 Jackson Street, Boyup Brook.

All quotations are verbatim and cited to the named source so each can be checked against councillors' own copies.

Documents referenced

1. **Caravan Parks and Camping Grounds Act 1995 (WA)** – consolidated version 03-e0-00, as at 7 November 2020 (legislation.wa.gov.au).
2. **Caravan Parks and Camping Grounds Regulations 1997 (WA)** – consolidated version 02-i0-00 (legislation.wa.gov.au).
3. **Shire of Boyup Brook Local Planning Scheme No. 2** ("the Scheme" / TPS 2).
4. **Shire of Boyup Brook Local Planning Strategy 2019-2034.**
5. **Shire of Boyup Brook Policy Manual** – Policy PD10 "Caravan Park", a Local Planning Policy, adoption date 27 March 2025 (V1), at p.255 of the 2026 Policy Manual review.

1. Caravan Parks and Camping Grounds Act 1995 – provisions that vest authority in the local government (the Shire / Council)

Throughout the Act the decision-maker is the "local government" – i.e. the Shire of Boyup Brook, exercised by Council and its delegates.

- **s.6(1) – Licence required to operate.** "On and after the appointed day a person must not operate a facility, or a facility of a prescribed type, unless the person holds the appropriate licence under this Act in relation to that facility. Penalty: \$5 000."
- **s.7(4) – Grant of licence and conditions.** "Subject to this section, a local government may grant or renew a licence and at any time may impose conditions on that licence."
- **s.7(5) – Owner's approval required.** "Before granting a licence a local government must ensure that – (a) the applicant has complied with the requirements of this Act; (b) the applicant is the owner of the land on which the facility is situated, or is to be situated, or has the written approval of the owner of that land to apply for a licence."
- **s.10(1) – Prohibition notice.** "A local government may by notice in writing give to a licence holder a prohibition notice if, in the opinion of the local government,

the licence holder is contravening – (a) this Act; or (b) any conditions imposed on the licence; or (c) any other matter which may be prescribed for the purpose of this subsection."

- **s.12(1) – Cancellation of licence.** "Subject to this section, a local government may by notice in writing given to a licence holder cancel a licence for a facility on the grounds that – ... (b) a condition imposed on the licence has been contravened; or (c) the licence was obtained by fraud or misrepresentation."
- **s.13(1) – Duties of licence holder (manager on or near site).** "A person licensed to operate a facility must ensure that – (a) a manager or other responsible person – (i) resides in or near the facility; and (ii) is responsible for the supervision of the facility; and (iii) is accessible at all times in case of an emergency; and (iv) where the facility is a caravan park, is available at the office of the caravan park during normal office hours ... (b) a register of occupiers is maintained in the prescribed manner; and (c) copies of this Act, any subsidiary legislation made under this Act, facility rules (if any) made by the licence holder and any special conditions imposed on the licence are readily available for inspection by the occupiers of the facility. Penalty: \$2 000."
- **s.14(1) – Register of licences.** "A local government is to keep a register of licences issued by it recording such details in respect of each licence as are prescribed."
- **s.14(2) – Public right to inspect the register.** "Any person may inspect the register during normal office hours and may request a copy of the details of any licence."
- **s.14(3) – Copy to be supplied.** "A local government is to supply a copy of the details of any licence requested under subsection (2) and may charge a fee (other than to the Department) which does not exceed the cost of providing the copy."
- **s.15(1) – Local-government-operated facility treated as licence holder.** "Despite section 6, a local government is not required to hold a licence to operate a facility in its district but sections 13 and 31 and all subsidiary legislation made under this Act apply to a local government which operates a facility in its district as if it were the licence holder in respect of the facility."

2. Caravan Parks and Camping Grounds Regulations 1997 – provisions on stay duration and site types

These definitions and provisions are the source of the "short stay" / "long stay" distinction and of the licence conditions that fix site numbers and types.

- **reg 3 – "long stay site".** "long stay site means a site at a caravan park which is to be occupied consecutively by the one person or group of persons for any period of time;" (no maximum duration).
- **reg 3 – "short stay site".** "short stay site means a site at a caravan park which is to be occupied consecutively by the one person or one group of persons, for no longer than 3 consecutive months;"

- **reg 3 – "transit park".** "transit park means a facility where an occupier may stay no longer than 3 consecutive nights."
- **reg 7 – How a condition is imposed.** "A condition is imposed on a licence under the Act – (a) when it is specified in writing on the licence by the local government; or (b) if it is impracticable to comply with paragraph (a), when it is specified in writing given to the licence holder."
- **reg 18 – Compliance with licence conditions.** "A licence holder is to comply with each condition imposed on the licence. Penalty: a fine of \$3 000."
- **reg 21 – Sites to be allocated and used in accordance with the licence.** "The licence holder of a facility is to ensure that – (a) sites are not allocated, or used, in contravention of the licence to operate the facility; and (b) more sites are not allocated or used at the facility than the maximum number of sites endorsed on the licence for use at the facility; and (c) more sites of a particular type, or in a particular area, are not allocated or used at the facility than the maximum number of such sites endorsed on the licence for use at the facility. Penalty: a fine of \$3 000."
- **reg 50 – Licence to specify number and types of sites.** "A local government is to endorse on each licence, as conditions of the licence – (a) the maximum number of sites that may be used at the facility, other than at any overflow area; and (b) where the facility has an overflow area, the maximum number of sites that may be used at any overflow area when the area is in use; and (c) the maximum number of sites of particular types that may be used at the facility, other than at any overflow area; and (d) where the facility has an overflow area, the maximum number of sites of particular types that may be used at any overflow area when the area is in use."
- **reg 66 – Details recorded in the register (s.14(1) of the Act).** "For the purposes of section 14(1) of the Act, the following details are prescribed details to be recorded in respect of each licence granted – (a) the name and address of the facility; (b) the name and address of each licence holder; (c) the type of licence; (d) the number and type of sites authorised to be used at the facility; (e) whether or not the facility has an overflow area, and if so, the number and type of sites authorised to be used at the overflow area; (f) the number of buildings on the facility that are used for occupation by persons; (g) any conditions imposed on the licence."

3. Shire of Boyup Brook Local Planning Scheme No. 2 – the Flax Mill site

The Flax Mill is the subject of a dedicated Special Use zone in the Scheme.

- **Table 5 – Special Use Zones in Scheme Area, SU1.** Description of land: "Lot 336 Jackson Street". 'P' (permissible) uses on the site are: "Caravan Park", "Camping Ground", "Holiday Accommodation", "Recreation - private". Conditions: "Provides for special events and activities such as live music, short-

term accommodation, food and drink stalls and bar sales. Uses to be contained wholly within the former Flax Mill site." (TPS 2, Table 5, p.19.)

- **Clause 21(2) – Restriction to permissible uses.** "A person must not use any land, or any structure or buildings on land, in a special use zone except for a class of use that is permissible in that zone and subject to the conditions that apply to that use."
- **Zoning table.** "Caravan Park" and "Camping Ground" are each shown as "D" (discretionary – may be approved) in the relevant zones, "X" (not permitted) in others. (TPS 2 zoning table.)
- **Clause 45(1) – Tourist accommodation.** "The use and development of land for a tourist development may only occur on a lot which has been included in either the Special Use zone or specified as an Additional Use within Table 4 or Table 5." (TPS 2 cl.45, p.29.)

4. Shire of Boyup Brook Local Planning Strategy 2019-2034 – Flax Mill references

- **Tourism listing.** Under Community / Tourism, the Strategy lists: "Caravan Park – at Flax Mill".
- **Planning issue – proposed Special Use zoning.** The Strategy records a proposal to "Consider zoning the below sites as 'Special Use' in the new Local Planning Scheme", listing "Flax Mill" with uses "Agroforestry, Education Establishment, Rural Industry, Market Garden, Poultry Farm, Free Range Piggery and ..." (Strategy, Planning Issues table).
- **Seasonal worker accommodation reference.** In the rural-worker accommodation provisions, the Strategy refers to circumstances where "there is no suitable alternative accommodation available (such as a caravan park) in close proximity to the farm".

5. Shire of Boyup Brook Policy Manual – Policy PD10 "Caravan Park"

- **PD10 cl.5 / 5.1 – Duration of stay deferred to the Act and Regulations.** "The development and operation of a Caravan Park use (including duration of stay) shall be in accordance with the Caravan Parks and Camping Grounds Act 1995 and Caravan Parks and Camping Grounds Regulations 1997." (Policy Manual, PD10, p.256; adoption date 27 March 2025.)
- **PD10 cl.5.2 – Caretaker on site.** "All caravan parks on private property are to have a caretaker living on-site."
- Caravan Parks and Camping Grounds Act 1995 [03-e0-00]; Caravan Parks and Camping Grounds Regulations 1997 [02-i0-00] – legislation.wa.gov.au.
- Shire of Boyup Brook Town Planning Scheme No. 2 (Table 5 SU1 p.19; cl.21; cl.45 p.29).
- Shire of Boyup Brook Local Planning Strategy 2019-2034.

- Shire of Boyup Brook Policy Manual, Policy PD10 "Caravan Park" (2026 review, pp.255-256; adopted 27 March 2025).